

****07.07.2022****

****Fine for GDPR Violation****

The National Supervisory Authority completed an investigation in May of the current year regarding the operator E Software Concept SRL and found violations of the provisions of Article 58 paragraph (1) letters a) and e) and Article 32 paragraph (1) letter b) and paragraph (2) of the General Data Protection Regulation. As such, the company E Software Concept SRL was sanctioned with the following fines:

- a fine of 4,945.54 lei, equivalent to 1,000 EURO, since the operator did not provide the information requested by the Supervisory Authority;
- a fine of 14,837.10 lei, equivalent to 3,000 EURO, since the operator did not implement appropriate technical and organizational measures to ensure a level of security corresponding to the risk of processing.

During the investigation, it was found that on the operator's website, at certain links, certain documents (such as invoices issued by E SOFTWARE CONCEPT SRL to its clients, both individuals and legal entities, and AWBs - transport documents that must accompany the shipment of packages, issued by the applicants of courier services) were publicly available, through which the following personal data was disclosed: name, surname, sender and recipient address, phone number, username and password, email addresses. This situation led to the loss of confidentiality of the personal data of the operator's clients (individuals and legal entities).

Thus, the company E SOFTWARE CONCEPT SRL was fined for violating the provisions of Article 32 paragraph (1) letter b) and paragraph (2) of the General Data Protection Regulation, as it did not implement appropriate technical and organizational measures to ensure a level of security corresponding to the risk of processing.

At the same time, the operator was fined for failing to respond to the request for information addressed by the National Supervisory Authority in the exercise of its powers.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****